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POWELL, J., dissenting

Roberts and City Manager Alberg, asking for damages for libel, slander, and malicious prosecution. Alberg won a dismissal of the state-law claims against him, and Councilman Roberts reached a settlement with Owen.²

This federal action was filed in 1976. Owen alleged that he was denied his liberty interest in his professional reputation when he was dismissed without formal charges or a hearing. *Id.*, at 8, 10.³

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Due process requires a hearing on the discharge of a government employee "if the employer creates and disseminates a false and defamatory impression about the employee in connection with his termination. . . ." *Codd v. Velger*, 429 U. S. 624, 628 (1977) (*per curiam*). This principle was first announced in *Board of Regents v. Roth*, 408 U. S. 564 (1972), which was decided in June 1972, 10 weeks after Owen was discharged. The pivotal question after *Roth* is whether the circumstances of the discharge so blackened the employee's

² In its answer to Owen's complaint in this action, the city cited the state-court action as *Owen v. Roberts and Alberg*, Case No. 778,640 (Jackson County, Mo., Circuit Ct.). App. 15.

³ Owen initially claimed that his property interests in the job also were violated. The Court of Appeals affirmed the District Court's rejection of that contention, 560 F. 2d 925, 937 (CA8 1977), and petitioner has not challenged that ruling in this Court.

The Court suggests that the city should have presented a cross-petition for certiorari in order to argue that Owen has no cause of action. *Ante*, at 633, n. 13. It is well settled that a respondent "may make any argument presented below that supports the judgment of the lower court." *Hankerson v. North Carolina*, 432 U. S. 233, 240, n. 6 (1977); see *Massachusetts Mutual Life Ins. Co. v. Ludwig*, 426 U. S. 479, 480-481 (1976), citing *United States v. American Railway Express Co.*, 265 U. S. 425, 435 (1924). The judgment of the Court of Appeals in the instant case was to "den[y] Owen any relief . . ." by finding that the defendants were immune from suit. 589 F. 2d 335, 338 (1979). Since the same judgment would result from a finding that Owen has no cause of action under the statute, respondents' failure to present a cross-petition does not prevent them from pressing the issue before this Court.